Reflections on Capital Punishment

Jason Reeves (October 2026)

Christians are taught not to be ashamed of the gospel, but many who heed this command fail to realize that included in this command is the strong implication that we also not be ashamed of the law, in which the gospel is rooted. The Old Testament moral law is binding on us as Christians today, as well as the implications and precepts of the obsolete legal codes of the Israeli theocracy and fulfilled ceremonial laws. Christians are not *required* to obey and uphold these laws as a condition of salvation, but God's word teaches us that as we grow in faith and are further sanctified, our lives will show the fruit of obedience. We would do well to study and apply God's law to our lives.

Capital punishment, or the death penalty, is a practice sanctioned by the Old Testament. Paul reaffirms the right of the civil magistrate to carry out the death penalty, and comments that the magistrate is ordained by God so to do. Christians, who are called to love the things that God loves and hate the things that God hates, must uphold and affirm this right and duty of the civil magistrate to carry out such punishments. We are called to rejoice when God's justice is carried out.

As Frances Schaeffer said, "How should we then live?" How do we uphold the principle of capital punishment while avoiding the danger of creating a violent, bloodthirsty, vengeful society? Clearly this is not the type of society that God wants to create. God's word speaks against wanton violence, bloodthirsty attitudes, and personal vengeance. Boasting, and by extension gloating over a defeated enemy is also spoken against. If we are to envision a society that God would endorse, such a society must be one that is merciful, while not neglecting justice; humble, yet boasting in the Lord and insisting on His ways; peaceful, yet willing to use violence when necessary.

The Biblical Warrant

There are some crimes which deserve the death penalty. The Old and New Testaments provide for mechanisms for communities to put members to death for capital crimes. In the Old Testament, this was done within the covenant community of Israel, with the witnesses throwing the first stone, and the entire congregation participating afterwards.[1] In the NT, the civil magistrate is the vehicle ordained by God to perform this function. We participate in such penalties by consenting to live under the laws of and by paying taxes to the magistrate.[2]

Justice, Not Vengeance

The death penalty is never characterized as personal or corporate retribution or vengeance.[3] God alone is responsible for wielding the sword of vengeance.[4] He is the only one who can righteously execute justice in this way. The death penalty is characterized, rather, as the solemn carrying out of God's justice. Any personal or corporate retributive spirit taints and blunts the just nature of the penalty and potentially brings God's just condemnation on such motives. We are never as a society going to get this completely right. This inability to be perfect should not deter us from pursuing obedience, either in civil or personal life.

Mourning And Rejoicing

Scripture teaches us not to rejoice at the fall of the wicked,[5] but also teaches us that the results of the wicked falling are good and worthy of praising God.[6] We must learn to mourn the loss of a fellow image bearer[7] while simultaneously celebrating the upholding of God's justice. These two concepts can be confused for one another. They must be kept distinct.

[1] The hand of the witnesses shall be first against him to put him to death, and afterward the hand of all the people. So shall you purge the evil from your midst.

–Deuteronomy 17:7 (NASB)

[2] '... for it [the magistrate] is a minister of God to you for good. But if you do what is evil, be afraid; for it does not bear the sword for nothing; for it is a minister of God, an avenger who brings wrath on the one who practices evil.

–Romans 13:4 (NASB)

[3] Never pay back evil for evil to anyone. Respect what is right in the sight of all men. If possible, so far as it depends on you, be at peace with all men. Never take your own revenge, beloved, but leave room for the wrath of God, for it is written, 'Vengeance is Mine, I will repay,' says the Lord.

–Romans 12:17-19 (NASB)

[4] The righteous will rejoice when he sees the vengeance [of God]; he will wash his feet in the blood of the wicked. And men will say, 'Surely there is a reward for the righteous; surely there is a God who judges on earth!'

–Psalm 58:10-11 (NASB)

[5] Do not rejoice when your enemy falls, and do not let your heart be glad when he stumbles; or the Lord will see it and be displeased, and turn His anger away from him.

–Proverbs 24:17-18 (NASB)

[6] Rejoice over her, O heaven, and you saints and apostles and prophets, because God has pronounced judgment for you against her.

–Revelation 18:20 (NASB)

[7] Say to them, 'As I live!' declares the Lord God, 'I take no pleasure in the death of the wicked, but rather that the wicked turn from his way and live. Turn back, turn back from your evil ways! Why then will you die, O house of Israel?'

–Ezekiel 33:11 (NASB)

Bloodlust And Conscience

Efforts to create a just and merciful society[8] must exclude cultivation of bloodlust,[9] inuring consciences to casual brutality,[10] and encouragement of vengeful impulses which are antithetical to the Christian mindset.[11] If we are to create communities which operate on Christian principles, then official acts must take into consideration how such acts might mar the consciences of the populace. The death penalty is supposed to act as a deterrent, but how that penalty is carried out can encourage or discourage Christian impulses. The magistrate should be encouraged to choose prudently.

[8] So speak and act as those who are to be judged by the law of liberty. For judgment will be merciless to one who has shown no mercy; mercy triumphs over judgment.

–James 2:12-13 (NASB)

[9] My son, do not walk in the way with them [the wicked]. Keep your feet from their path, for their feet run to evil and they hasten to shed blood.

–Proverbs 1:15-16 (NASB)

[10] There is swearing, deception, murder, stealing, and adultery. They employ violence, so that bloodshed follows bloodshed.

–Hosea 4:2 (NASB)

[11] . . . therefore as I live,' declares the Lord GOD, 'I will give you over to bloodshed, and bloodshed will pursue you; since you have not hated bloodshed, therefore bloodshed will pursue you.'

–Ezekiel 35:6 (NASB)